

CHAPTER 54.

An Act to amend and extend the Shops Regulation Acts,
1892 to 1904. [16th December 1911.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) On at least one week day in each week a shop assistant shall not be employed about the business of a shop after half-past one o'clock in the afternoon : Hours of employment and meal times.

Provided that this provision shall not apply to the week preceding a bank holiday if the shop assistant is not employed on the bank holiday, and if on one week day in the following week in addition to the bank holiday the employment of the shop assistant ceases not later than half-past one o'clock in the afternoon.

(2) Intervals for meals shall be allowed to each shop assistant in accordance with the First Schedule to this Act.

(3) The occupier of a shop shall fix, and shall specify in a notice in the prescribed form, which must be affixed in the shop in such manner and at such time as may be prescribed, the day of the week on which his shop assistants are not employed after half-past one o'clock, and may fix different days for different shop assistants.

2.—(1) Every shop shall, save as otherwise provided by this Act, be closed for the serving of customers not later than one o'clock in the afternoon on one week day in every week. Closing of shops on weekly half-holiday.

(2) The local authority may, by order, fix the day on which a shop is to be so closed (in this Act referred to as the weekly half-holiday), and any such order may either fix the same day for all shops, or may fix—

- (a) different days for different classes of shops ; or
- (b) different days for different parts of the district ; or
- (c) different days for different periods of the year :

Provided that—

- (1) where the day fixed is a day other than Saturday, the order shall provide for enabling Saturday to be substituted for such other day ; and
- (2) where the day fixed is Saturday, the order shall provide for enabling some other day specified in the order to be substituted for Saturday ;

as respects any shop in which notice to that effect is affixed by the occupier, and that no such order shall be made unless the local authority after making such inquiry as may be

prescribed are satisfied that the occupiers of a majority of each of the several classes of shops affected by the order approve the order.

(3) Unless and until such an order is made affecting a shop, the weekly half-holiday as respects the shop shall be such day as the occupier may specify in a notice affixed in the shop, but it shall not be lawful for the occupier of the shop to change the day oftener than once in any period of three months.

(4) Where the local authority have reason to believe that a majority of the occupiers of shops of any particular class in any area are in favour of being exempted from the provisions of this section, either wholly or by fixing as the closing hour instead of one o'clock some other hour not later than two o'clock, the local authority, unless they consider that the area in question is unreasonably small, shall take steps to ascertain the wishes of such occupiers, and, if they are satisfied that a majority of the occupiers of such shops are in favour of the exemption, or, in the case of a vote being taken, that at least one half of the votes recorded by the occupiers of shops within the area of the class in question are in favour of the exemption, the local authority shall make an order exempting the shops of that class within the area from the provisions of this section either wholly or to such extent as aforesaid.

(5) Where a shop is closed during the whole day on the occasion of a bank holiday, and that day is not the day fixed for the weekly half-holiday, it shall be lawful for the occupier of the shop to keep the shop open for the serving of customers after the hour at which it is required under this section to be closed either on the half-holiday immediately preceding, or on the half-holiday immediately succeeding, the bank holiday.

(6) This section shall not apply to any shop in which a trade or business of any class mentioned in the Second Schedule to this Act is carried on, but the local authority may, by order made and revocable in like manner as closing orders, extend the provisions of this section to shops of any class exempted under this provision if satisfied that the occupiers of at least two thirds of the shops of that class approve the order.

4 Edw. 7. c. 31.

(7) The power under the Shop Hours Act, 1904, to fix a closing hour earlier than seven o'clock, shall cease to have effect, and any closing order which is in force at the commencement of this Act shall cease to have effect in so far as it fixes an hour earlier than seven o'clock for any shop to which this section applies.

Local inquiries for the purpose of promoting and facilitating early closing.

3.—(1) Where it appears to the Secretary of State, on the representation of the local authority or a joint representation from a substantial number of occupiers of shops and shop assistants in the area of the local authority, that it is expedient to ascertain the extent to which there is a demand for early closing in any locality, and to promote and facilitate the making

of a closing order therein, the Secretary of State may appoint a competent person to hold a local inquiry.

(2) If, after holding such an inquiry and conferring with the local authority, it appears to the person holding the inquiry that it is expedient that a closing order should be made, he shall prepare a draft order and submit it to the Secretary of State together with his report thereon.

(3) If the Secretary of State, after considering the draft order and report, and any representations which the local authority may have made in respect thereof, is of opinion that it is desirable that a closing order should be made, he may communicate his decision to the local authority, and thereupon there shall be deemed to be a *prima facie* case for making a closing order in accordance with the terms of the draft order, subject to such modifications (if any) as the Secretary of State may think fit.

(4) The person who held the inquiry shall, if so directed by the Secretary of State on the application of the local authority, assist and co-operate with the local authority in taking the steps preliminary to making the order.

(5) The remuneration of persons holding local inquiries under this section, and all other expenses incurred by the Secretary of State under this Act, to such an amount as may be sanctioned by the Treasury, shall be defrayed out of moneys provided by Parliament.

4. Subject to any provisions contained in a closing order, it shall not be lawful in any locality to carry on in any place not being a shop retail trade or business of any class at any time when it would be unlawful in that locality to keep a shop open for the purposes of retail trade or business of that class, and, if any person carries on any trade or business in contravention of this section, the Shops Regulation Acts, 1892 to 1911, shall apply as if he were the occupier of a shop and the shop were being kept open in contravention of those Acts :

Provisions as to trading elsewhere than in shops.

Provided that—

(a) nothing in this section shall be construed as preventing a barber or hairdresser from attending a customer in the customer's residence, or the holding of an auction sale of private effects in a private dwelling-house ; and

(b) nothing in this section shall apply to the sale of newspapers.

5.—(1) Where several trades or businesses are carried on in the same shop, and any of those trades or businesses is of such a nature that, if it were the only trade or business carried on in the shop, the shop would be exempt from the obligation to be closed on the weekly half-holiday, the exemption shall apply to the shop so far as the carrying on of that trade or business is

Provisions as respects shops where more than one business is carried on.

concerned, subject, however, to such conditions as may be prescribed.

(2) Where several trades or businesses are carried on in the same shop, the local authority may require the occupier of the shop to specify which trade or business he considers to be his principal trade or business, and no trade or business other than that so specified shall, for the purpose of determining a majority under the Shops Regulation Acts, 1892 to 1911, be considered as carried on in the shop, unless the occupier of the shop satisfies the local authority that it forms a substantial part of the business carried on in the shop.

Special provisions as to holiday resorts.

6.—(1) In places frequented as holiday resorts during certain seasons of the year the local authority may by order suspend, for such period or periods as may be specified in the order, not exceeding in the aggregate four months in any year, the obligation imposed by this Act to close shops on the weekly half-holiday.

(2) Where the occupier of any shop to which any such order of suspension applies satisfies the local authority that it is the practice to allow all his shop assistants a holiday on full pay of not less than two weeks in every year, and keeps affixed in his shop a notice to that effect, the requirement that on one day in each week a shop assistant shall not be employed after half-past one o'clock shall not apply to the shop during such period or periods as aforesaid.

Powers and duties of local authorities.

7.—(1) It shall be the duty of every local authority to enforce within their district the provisions of the Shops Regulation Acts, 1892 to 1911, and of the orders made thereunder, and for that purpose to institute and carry on such proceedings in respect of failures to comply with or contraventions of those Acts and the orders made thereunder as may be necessary to secure the observance thereof, and to appoint inspectors; and an inspector so appointed shall, for the purposes of his powers and duties, have in relation to shops all the powers conferred in relation to factories and workshops on inspectors by section one hundred and nineteen of the Factory and Workshop Act, 1901, and that section and section one hundred and twenty-one of the same Act shall apply accordingly; and an inspector may, if so authorised by the local authority, institute and carry on any proceedings under this Act on behalf of the authority.

1 Edw. 7. c. 22.

(2) In this Act the expression "local authority" means—
as respects the city of London, the common council;
as respects any municipal borough, the council of the borough;
as respects any urban district with a population according to the returns of the last published census for the time being of twenty thousand or upwards, the district council;
elsewhere, the county council;

and the same local authorities shall be the local authorities for the purposes of the Shop Hours Act, 1904, and shall, in so far as they differ from the local authorities specified in that Act, be substituted for those local authorities :

Provided that a county council may, with the approval of the Secretary of State, make arrangements with the council of an urban district in the county with a population of less than twenty thousand, or with the council of a rural district, for the exercise by the council of that district as agents for the county council, on such terms and subject to such conditions as may be agreed on, of any powers of the county council under the Shops Regulation Acts, 1892 to 1911, within the district, and the council of the district may, as part of the agreement, undertake to pay the whole or any part of the expenses incurred in connection with the exercise of the powers delegated to them, and the London County Council may, with the like approval, make similar arrangements with the council of any metropolitan borough.

(3) The expenses of a local authority under the Shops Regulation Acts, 1892 to 1911 (including any expenses which a council undertake to pay as aforesaid), shall, save as otherwise expressly provided by this Act, be defrayed—

- in the case of the common council of the city of London, out of the general rate ;
- in the case of the council of a borough, out of the borough fund or borough rate ;
- in the case of a district council, as part of the general expenses incurred in the execution of the Public Health Acts ;
- in the case of a county council, as expenses for special county purposes ;
- in the case of a metropolitan borough council, as part of the expenses of the council.

8.—(1) If a shop assistant is employed contrary to the provisions of this Act, or is not allowed times for meals as required by this Act, the occupier of the shop shall be guilty of an offence against this Act unless, in the case of a shop assistant employed after half-past one o'clock in contravention of this Act, he proves that the shop assistant was employed merely for the purpose of serving a customer whom he was serving at that time, or that that time coincided with the time of the closing of the shop, and that the shop assistant was employed merely for the purpose of serving customers who were in the shop at that time.

(2) If a shop is kept open on the weekly half-holiday, the occupier of the shop shall be guilty of an offence against this Act :

Provided that the occupier of a shop shall not be guilty of an offence against this Act when a customer is served at any time at which the shop is required to be closed, if he proves

either that the customer was in the shop before the time when the shop was required to be closed, or that there was reasonable ground for believing that the article supplied to the customer was required in the case of illness.

3) If the occupier of a shop contravenes or fails to comply with any of the other provisions of this Act or the orders made thereunder, he shall be guilty of an offence against this Act.

(4) Where an offence for which the occupier of a shop is liable under the Shops Regulation Acts, 1892 to 1911, has, in fact, been committed by some manager, agent, servant, or other person, the manager, agent, servant, or other person shall be liable to the like penalty as if he were the occupier.

(5) A person guilty of an offence against this Act shall be liable to a fine not exceeding—

(a) in the case of a first offence, one pound ;

(b) in the case of a second offence, five pounds ; and

(c) in the case of a third or subsequent offence, ten pounds.

(6) The provisions of the Shops Regulation Acts, 1892 to 1904, relating to offences and proceedings shall apply as if re-enacted in this Act and in terms made applicable thereto, and as if references to the occupier of a shop were substituted for references to the employer of a young person.

(7) All fines imposed in any proceedings instituted by or on behalf of a local authority in pursuance of their powers and duties under the Shops Regulation Acts, 1892 to 1911, shall be paid to the local authority and carried to the credit of the fund out of which the expenses incurred by the authority under those Acts are defrayed.

Proof and
revocation of
closing orders.

9.—(1) Any order made by a local authority under the Shops Regulation Acts, 1892 to 1911, may be proved by the production of a copy thereof certified to be a true copy by a person purporting to be the clerk of the local authority by whom the order was made.

(2) Any order made by a local authority under this Act may, unless otherwise provided by this Act, be revoked by an order made in the like manner and subject to the like approval as the original order.

Application to
Post Office
business.

10.—(1) Where Post Office business is carried on in any shop in addition to any other business, this Act shall apply to that shop subject to the following modifications :—

(a) If the shop is a telegraph office, the obligation to close on the weekly half-holiday shall not apply to the shop so far as relates to the transaction of Post Office business thereat :

(b) Where the Postmaster General certifies that the exigencies of the postal service require that Post Office business

should be transacted in any such shop at times when under the provisions of this Act relating to the weekly half-holiday the shop would be required to be closed, or under conditions not authorised by this Act, the shop shall, for the purpose of the transaction of Post Office business, be exempted from the provisions of this Act to such extent as the Postmaster General may certify to be necessary for the purpose :

Provided that in such cases the Postmaster General shall make the best arrangements that the exigencies of the postal service allow with a view to the conditions of employment of the persons employed being on the whole not less favourable than those secured by this Act.

(2) Save as aforesaid, nothing in this Act shall apply to Post Office business, or to any premises in which Post Office business is transacted.

11. Nothing in this Act shall prevent customers from being served, at a time when the shop in which they are sold is required to be closed, with victuals, stores, or other necessities for a ship, on her arrival at or immediately before her departure from a port. Supply of necessities to ships.

12. Nothing in this Act shall apply to any fair lawfully held or any bazaar or sale of work for charitable or other purposes from which no private profit is derived. Saving for fairs and bazaars.

13.—(1) Section ten of the Shop Hours Act, 1892, which provides for the exemption of members of the occupier's family and domestic servants from the provisions of that Act, shall cease to have effect, except so far as it relates to persons wholly employed as domestic servants. Provisions with respect to members of the same family. 55 & 56 Viet. c. 62.

(2) The provisions of this Act with respect to the allowance of intervals for meals shall not apply to a shop, if the only persons employed as shop assistants are members of the family of the occupier of the shop maintained by him and dwelling in his house.

14. In this Act—

The expression “shop” includes any premises where any retail trade or business is carried on ;

The expression “retail trade or business” includes the business of a barber or hairdresser, the sale of refreshments or intoxicating liquors, and retail sales by auction, but does not include the sale of programmes and catalogues and other similar sales at theatres and places of amusement ;

The expression “shop assistant” means any person wholly or mainly employed in a shop in connexion with the serving of customers or the receipt of orders or the despatch of goods ;

Interpretation.

The expression "bank holiday" includes any public holiday or day of rejoicing or mourning ;

The expression "prescribed" means prescribed by regulations made under the Shop Hours Act, 1904 ;

The expression "closing order" means a closing order under the Shop Hours Act, 1904.

Application
to Scotland.

15. This Act shall apply to Scotland, subject to the following modifications :—

The Secretary for Scotland shall be substituted for the Secretary of State.

The local authority for the purposes of the Shops Regulation Acts, 1892 to 1911, shall be the county council in a county (exclusive of the police burghs therein) and the town council in a royal, parliamentary, or police burgh ; and the expenses of a local authority under the said Acts shall be defrayed, in the case of a county council, out of the general purposes rate, and, in the case of a town council, out of the burgh general improvement assessment, or any other assessment leviable by the town council in equal proportions on owners and occupiers : Provided that the ratepayers of a police burgh shall not be assessed by the county council for any such expenses.

Application
to Ireland.

16. This Act shall apply to Ireland subject to the following modifications :—

(1) The Lord Lieutenant shall be substituted for the Secretary of State :

(2) A local authority for the purposes of this Act means as respects any municipal borough the borough council, and as respects any urban district the district council, and those authorities shall, as respects their several areas, be the local authorities for the purposes of the Shop Hours Act, 1904 :

(3) The expenses of such local authorities shall be defrayed, in the case of a municipal borough, out of the borough fund or borough rate, and, in the case of a district council, as part of the general expenses incurred in the execution of the Public Health (Ireland) Acts, 1878 to 1907 :

(4) This Act shall not extend to any rural district or part of a rural district, and nothing in this Act shall affect the powers or duties, under the Shops Regulation Acts, 1892 to 1904, of the commissioners of any town or township not being an urban district :

(5) In the case of a shop assistant employed in a shop in which the business of the sale by retail of intoxicating liquors is carried on, section one of this Act shall not

apply, but, instead thereof, the following provisions shall have effect :—

(a) The assistant shall not, save as otherwise provided by this Act, be employed about the business of such shop for more than seventy-two hours (exclusive of meal hours) in any week ;

(b) Intervals for meals shall be allowed to each assistant, amounting to not less than two hours on each week-day ;

(c) The occupier of the shop shall fix within the limit aforesaid, and shall specify in a notice in the prescribed form affixed in the shop, the times at which the employment or the several spells of employment, as the case may be, of the assistant are to commence and end on the several days of the week, and the assistant shall not be employed about the business of the shop, except within the time so fixed ;

(d) The assistant may be employed overtime for not more than ninety hours in the calendar year, and such employment shall not be reckoned as employment for the purposes of the foregoing limitation of the hours of employment :

Provided that, during the first two months after the assistant has entered the employment, the amount of overtime worked by him shall not exceed the proportion of two hours for every week he has been in the employment, or is entitled under a contract to continue in the employment ;

(e) The assistant shall be deemed to be employed overtime if he is employed before the time fixed by the notice for the commencement or after the time so fixed for the ending of his employment or during the interval so fixed between two spells of employment, and overtime shall be reckoned in periods of half an hour, and any period of overtime of less than half an hour shall be reckoned as a complete half hour ; and the occupier of the shop when he intends to employ the assistant overtime on any day shall, before the overtime employment commences, record the prescribed particulars with respect to that employment in the prescribed manner ;

(f) The assistant shall, subject as herein-after mentioned, be allowed on one week-day in each week a holiday of not less than seven hours (in this sub-section referred to as a weekly half-holiday).

Unless the employer and the shop assistant otherwise agree, the weekly half-holiday shall commence either at the time at which the shop opens on that

day (in this subsection referred to as "a morning half-holiday"), or at a time not less than seven hours before the time at which the shop closes on that day (in this subsection referred to as "an afternoon half-holiday"), and the aforesaid half-holidays shall be so arranged that the assistant shall be allowed a morning half-holiday and an afternoon half-holiday alternately ;

(g) An assistant who has been employed by the same employer for a period of not less than twenty-six consecutive weeks about the business of one or more shops of the employer shall, so long as he continues in the employment of that employer, be allowed an annual holiday of at least seven consecutive days, or, if he has been employed as aforesaid for a period of not less than fifty-two consecutive weeks, an annual holiday of at least fourteen consecutive days ;

(h) In any week in which an assistant is absent from his employment in or about the business of the shop, either on his annual holiday or on account of ill-health or otherwise, the weekly half-holiday may be disallowed in the case of every other assistant employed in or about the business of the shop and the number of hours of weekly employment of every such other assistant may be increased by seven hours accordingly : Provided that, where the assistant is absent for more than four consecutive weeks on account of ill-health, the weekly half-holiday of the other assistants shall not be disallowed and their hours of employment shall not be increased by reason of such absence except in the first four weeks in which he is absent ;

(i) No deduction from wages or salary payable to the assistant shall be made on account of any such holidays or half-holidays as aforesaid :

- (6) Any shop in which the trade or business of the sale by retail of intoxicating liquors is carried on in conjunction with any other trade or business, shall, as respects all such trades or businesses, be exempt from the obligation to be closed on the weekly half holiday :
- (7) A local authority may, in addition to its other powers under the Shops Regulation Acts, 1892 to 1911, make an order fixing the hours on the several week-days before which, either throughout the area of the local authority or in any specified part thereof, no shop, in which the business of the sale of intoxicating liquors for consumption on or off, or for consumption off, the premises only is carried on, shall be open for serving customers :

Such order shall be deemed to be a closing order, and all the provisions of the Shop Hours Act, 1904, with respect to closing orders, save those relating to the earliest hours to be fixed by a closing order, shall apply accordingly with the necessary modifications :

Provided that an order made under this subsection shall not in any way affect the powers conferred by section eleven of the Licensing (Ireland) Act, 1874, of granting exemption orders in respect of licensed premises, or apply to any licensed premises during any time during which the premises are permitted to be open under any such exemption order :

37 & 38 Vict.
c. 69.

- (8) Shops in which there is carried on the business of the sale by retail of intoxicating liquors for consumption on or off the premises, whether such business is carried on alone or in conjunction with any other business or trade, shall, for the purposes of the provisions of the Shop Hours Act, 1904, with respect to closing orders, be deemed to be shops of a separate class, and a local authority shall not make a closing order applying to shops of that class unless they are satisfied that the occupiers of at least two thirds in number of the shops of that class approve the order :
- (9) Shops in which there is carried on the business of the sale by retail of intoxicating liquors for consumption off the premises only, whether such business is carried on alone or in conjunction with any other business or trade, shall, in like manner and for the purposes aforesaid, be deemed to be shops of a separate class, and the provisions of the last preceding subsection with respect to the making of closing orders shall apply to that class of shops as a separate class accordingly.

17.—(1) This Act may be cited as the Shops Act, 1911 ; and the Shops Regulation Acts, 1892 to 1904, shall be construed as one with this Act, and may be cited with this Act as the Shops Regulation Acts, 1892 to 1911.

Short title
and com-
mencement.

(2) This Act shall come into operation on the first day of May nineteen hundred and twelve.

(3) The enactments specified in the Third Schedule to this Act are hereby repealed to the extent specified in the third column of that schedule except so far as they relate to rural districts in Ireland, and to local authorities in those districts.

SCHEDULES.

Section 1.

FIRST SCHEDULE.

INTERVALS FOR MEALS.

Intervals for meals shall be arranged so as to secure that no person shall be employed for more than six hours without an interval of at least twenty minutes being allowed during the course thereof.

Without prejudice to the foregoing provision—

- (1) where the hours of employment include the hours from 11.30 a.m. to 2.30 p.m., an interval of not less than three-quarters of an hour shall be allowed between those hours for dinner; and
- (2) where the hours of employment include the hours from 4 p.m. to 7 p.m., an interval of not less than half-an-hour shall be allowed between those hours for tea;

and the interval for dinner shall be increased to one hour in cases where that meal is not taken in the shop, or in a building of which the shop forms part or to which the shop is attached:

Provided that an assistant employed in the sale of refreshments or in the sale by retail of intoxicating liquors need not be allowed the interval for dinner between 11.30 a.m. and 2.30 p.m., if he is allowed the same interval so arranged as either to end not earlier than 11.30 a.m. or to commence not later than 2.30 p.m., and the same exemption shall apply to assistants employed in any shop on the market day in any town in which a market is held not oftener than once a week, or on a day on which an annual fair is held.

Section 2.

SECOND SCHEDULE.

TRADES AND BUSINESSES EXEMPTED FROM THE PROVISIONS OF THIS ACT AS TO WEEKLY HALF-HOLIDAY.

The sale by retail of intoxicating liquors.

The sale of refreshments, including the business carried on at a railway refreshment room.

The sale of motor, cycle, and air-craft supplies and accessories to travellers.

The sale of newspapers and periodicals.

The sale of meat, fish, milk, cream, bread, confectionery, fruit, vegetables, flowers, and other articles of a perishable nature.

The sale of tobacco and smokers' requisites.

The business carried on at a railway bookstall on or adjoining a railway platform.

The sale of medicines and medical and surgical appliances.

Retail trade carried on at an exhibition or show, if the local authority certify that such retail trade is subsidiary or ancillary only to the main purpose of the exhibition or show.
